

26STCV13315 26STCV13315

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-08-05

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Case Number: 26STCV13315 Hearing Date: August 5, 2026 Dept: 509

Yesenia Archibold, et al. v. Jones & Jones Management Group, Inc., et al.

MOTION TO STRIKE

MOVING PARTY: Defendants Jones & Jones Management Group, Inc. and Gloria Homes

RESPONDING PARTYS: Plaintiffs Yesenia Archibold, Keith Archibold, Matthew Archibold, Melanie Archibold, Mila Archibold, Mya Archibold, and Meagan Archibold

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a habitability action. Plaintiffs Yesenia Archibold, Keith Archibold, Matthew Archibold, Melanie Archibold, Mila Archibold, Mya Archibold, and Meagan Archibold (Plaintiffs) filed this complaint against defendants Jones & Jones Management Group, Inc. and Gloria Homes (collectively, Defendants) arising from disputes relating to a residential lease. Plaintiffs assert causes of action for: (1) breach of implied warranty of habitability; (2) breach of contract; (3) negligence per se; (4) negligence (premises liability); (5) private nuisance; (6) breach of the covenant of quiet enjoyment; (7) breach of the implied covenant of good faith and fair dealing; (8) violation of the Los Angeles Rent Stabilization Ordinance (LAMC Ch. XV, Art. 1); (9) negligent misrepresentation; (10) negligent infliction of emotional distress.

Defendants now move to strike punitive damages requested within the complaint. Plaintiffs opposed.

TENTATIVE RULING:

Defendants' Motion to Strike is GRANTED.

Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

If no leave is granted, Defendants are ordered to filer an Answer (if not already done so) within 21 days.

Moving parties are ordered to give notice, unless waived.

DISCUSSION:

Motion to Strike

I. Meet and Confer

Before filing a motion to strike, the moving party “shall meet and confer...with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike...” (Code Civ. Pro. § 435.5, subd. (a).) The moving party “shall file and serve with the motion to strike a declaration” attesting to the meet and confer. (Id. § 435.5(a)(3).)

The Declaration of attorney Nhutruc H. Do reflects the meet and confer requirement was satisfied.

II. Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Pro. § 436.)

III. Analysis

Defendants move to strike punitive damages from the complaint. Defendants argue Plaintiffs failed to plead specific facts to support an award of punitive damages.

Civil Code, section 3294 provides that “[i]n an action for the breach of an obligation not arising from contract where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.”

As defined in Section 3294(c):

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(3) “Fraud” means that a defendant intentionally misrepresented or concealed a material fact and did so intended to harm a plaintiff.

Here, Plaintiffs allege that Defendants failed to remedy issues at the property despite being on notice of same. However, beyond the general allegations that Defendants were on notice of the defects and failed to remedy them, Plaintiff has failed to allege the ultimate facts necessary to show the requisite malice, oppression, or fraud necessary to seek punitive damages. Instead, Plaintiff conclusively alleges that “Defendants’ conduct was knowing, malicious, oppressive, and in conscious disregard of Plaintiffs’ health, safety, and rights as tenants.” (Compl. ¶13.)

Further, Plaintiffs' opposition relies upon Penner v. Falk, which stated: "[t]o support an award of punitive damages on the basis of conscious disregard of the safety of others, a plaintiff 'must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.'" (Penner v. Falk (1984) 153 Cal.App.3d 858, 867.) However, Plaintiffs have merely made general allegations that Defendants were on notice of the defects and failed to remedy them. Plaintiffs' complaint does not provide factual allegations that such a failure was the result of a willful or deliberate act.

Accordingly, Defendants' Motion to Strike is GRANTED. Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

IT IS SO ORDERED.

Dated: August 5, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.